

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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KURT WALTERS,

Plaintiff,

-against-

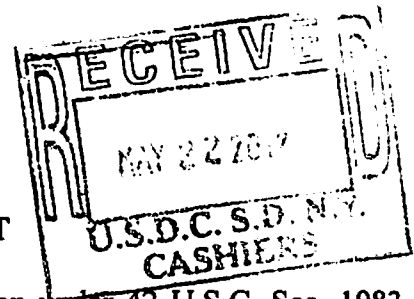
CITY OF NEW YORK, POLICE OFFICER CALVIN FERGUS,
CAPT. JASON SAVINO, POLICE OFFICER HERIBERTO
VASQUEZ, SGT JOSE FRIAS and SGT WILLIAM MELROSE,

Defendants.
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Index No.: 12 CV 0031
(AJN)

AMENDED
COMPLAINT AND
JURY DEMAND

INTRODUCTORY STATEMENT



1. The plaintiff, KURT WALTERS, brings this action under 42 U.S.C. Sec. 1983 and related state laws seeking compensatory and punitive damages and attorney's fees under 42 U.S.C. Sec. 1988 for the defendants' violation of their rights afforded by the United States and New York Constitutions and under the laws of the State of New York.

2. Defendants, CITY OF NEW YORK, POLICE OFFICER CALVIN FERGUS, CAPT. JASON SAVINO, POLICE OFFICER HERIBERTO VASQUEZ, SGT JOSE FRIAS and SGT WILLIAM MELROSE being employees of the New York City Police Department, respectively, violated plaintiff's civil rights without just and probable cause, causing him emotional and economic loss.

JURISDICTION

3. The Court has jurisdiction over plaintiff's claims under 42 U.S.C. Sec. 1983 pursuant to 28 U.S.C. Sec. 1331 and Sec. 1342(3).

4. The Court has supplemental jurisdiction over plaintiff's state law claims pursuant to 28 U.S.C. Sec. 1367.

5. Prior to commencement of this action and within 90 days of occurrence herein, on February 22, 2011, plaintiff served a Notice of Claim in writing, upon the defendant, the City of New York, in accordance with Section 50(e) of the General Municipal Law.

6. A hearing was held pursuant to Section 50(h) of the General Municipal Law on, September 26, 2011 and this case has not been settled or adjusted.

7. This action was commenced within one year and ninety days of the occurrence complained of herein that gave rise to plaintiff's injuries and plaintiff has complied with all of the prerequisites for bringing this action.

PARTIES

8. Plaintiff is a resident of the County of BRONX, City and State of New York.

9. Defendant CITY OF NEW YORK is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and as such is responsible for the practices, policies and customs of the New York City Police Department, as well as the hiring, screening, training, supervising, controlling and disciplining of those persons employed by the New York City Police Department.

10. Defendants POLICE OFFICER CALVIN FERGUS, CAPT. JASON SAVINO, POLICE OFFICER HERIBERTO VASQUEZ, SGT JOSE FRIAS and SGT WILLIAM MELROSE, are being sued herein both in their individual and official capacities, are and were at all times hereinafter mentioned, and particularly on or about December 2, 2010, employed by the City of New York.

11. Defendants were at all times acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New York and/or the City of New York and defendants were also acting within the scope of and in furtherance of their employment.

FACTUAL ALLEGATIONS

12. Plaintiff, KURT WALTERS, was not guilty of any criminal acts

13. On or about December 2, 2010, plaintiff and his associate Troy Allison entered the building where the plaintiff resides and they were greeted by defendants POLICE OFFICER CALVIN FERGUS and POLICE OFFICER HERIBERTO VASQUEZ.

14. POLICE OFFICER CALVIN FERGUS and POLICE OFFICER HERIBERTO VASQUEZ were both dressed in plain clothes.

15. POLICE OFFICER CALVIN FERGUS and POLICE OFFICER HERIBERTO VASQUEZ began to question the plaintiff about his whereabouts that day and whether or not he had any weapons on his person.

16. The plaintiff explained that he was in Court paying a surcharge on an old matter and that he did not have any weapons in his possession or on his person.

17. At this point, defendant CAPT. JASON SAVINO arrived at the location and the plaintiff was instructed to walk over to a corner where POLICE OFFICER CALVIN FERGUS and POLICE OFFICER HERIBERTO VASQUEZ began to conduct a "pat down" of the plaintiff.

18. After failing to recover any contraband during the "pat down" of the plaintiff, the Detectives then conducted a strip search of the plaintiff in the lobby of the location. Again, no contraband was recovered.

19. Nonetheless, the plaintiff was placed under arrest, handcuffed, and transported the Police Service Area 6 precinct (PSA 6) located at 2770 Frederick Douglas Boulevard, New York, NY 10039.

20. The plaintiff's associate, Troy Allison, was also placed under arrested and transported to PSA 6. Troy Allison was release shortly after his arrival at the precinct.

21. When the plaintiff arrived at PSA 6, he was processed, fingerprinted, photographed and his personal property was vouchered.

22. The plaintiff repeatedly asked the detectives why he was placed under arrest. His questions were ignored.

23. The plaintiff was then removed from a holding cell and placed into an interview room by CAPT. JASON SAVINO.

24. Once in the room, CAPT. JASON SAVINO began to question him about a shooting and showed him a photograph of the young man who was the victim of the shooting.

25. The plaintiff explained that he had no knowledge of this shooting and reiterated that he could not be involved in any criminal activity since he was in Court paying a surcharge and had the corresponding paperwork to prove that he was in Court.

26. CAPT. JASON SAVINO then removed the plaintiff from the interview room and placed him back into a holding cell.

27. Once he was inside of the holding cell, POLICE OFFICER CALVIN FERGUS and POLICE OFFICER HERIBERTO VASQUEZ began jeering back and forth with the plaintiff about him being involved in the shooting with the plaintiff responding that he was innocent.

28. POLICE OFFICER CALVIN FERGUS and POLICE OFFICER HERIBERTO VASQUEZ told the plaintiff that he was delirious and that he needed to be taken to the hospital for medical attention.

29. There after EMT workers arrived at the precinct and insisted that the plaintiff go with them to the hospital, when he refused, the plaintiff was forced out of the holding cell by

POLICE OFFICER CALVIN FERGUS and POLICE OFFICER HERIBERTO VASQUEZ, SGT JOSE FRIAS and SGT WILLIAM MELROSE.

30. The plaintiff was thrown to the ground, threatened with a stun gun, and the officer began to grab his neck, arms, and feet in an attempt to force his body onto the ground. The plaintiff was then struck on the left side of his ribs.

31. The plaintiff was then strapped to a stretcher and transported to the psychiatric emergency department at Harlem Hospital.

32. He was examined and it was determined that he was not in need of any psychiatric treatment and was then transferred to the regular emergency room where he underwent an x-ray of his left leg.

33. In the emergency room, the plaintiff complained of pain to his ribs, back, shoulder, elbow, neck, and left foot.

34. The plaintiff was given crutches, pain medication and released into the custody of the New York City Police Department.

35. On December 3, 2010, the plaintiff was taken to New York County Supreme Court where he was arraigned on felony possession of a controlled substance.

36. The plaintiff continued to be falsely prosecuted in this matter until the case was dismissed on September 8, 2011, on the application of the District Attorney's office.

**AS AND FOR A FIRST CAUSE OF ACTION –
VIOLATION OF CIVIL RIGHTS**

37. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 36 as if fully set forth herein.

38. As a direct and proximate result of the defendants' actions, plaintiff was deprived of rights, privileges and immunities secured to them under the Constitution and laws of New

York and the United States, including, but not limited to their rights under the Fourth, Eighth and Fourteenth Amendments and 42 U.S.C. 1983 to be secure in their person, to be free from unreasonable searches and seizures, to be free from malicious prosecution, false arrest and false imprisonment and punishment without due process and to equal protection of the laws.

39. As a result of the aforesaid violation of plaintiff's rights, sustained injuries and damages previously described in this complaint.

40. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdiction of this Court from all defendants.

**AS AND FOR A SECOND CAUSE OF ACTION –
NEGLIGENCE**

41. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 40 as if fully set forth herein.

42. The defendants, their agents, servants or employees acted negligently, carelessly and recklessly in arresting and prosecuting the plaintiff.

43. As a result of the aforesaid, plaintiffs sustained the injuries and damages previously described in this complaint.

44. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdiction of this Court from all defendants.

**AS AND FOR A THIRD CAUSE OF ACTION –
NEGLIGENT RETENTION AND NEGLIGENT HIRING**

45. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 44 as if fully set forth herein.

46. The defendants, their agents, servants or employees acted negligently, carelessly and recklessly in hiring and/or retaining the individually named defendants in that said individual

defendants were or should have been known to be employees who abused and misused their position, who gave false information, or who acted intentionally and/or recklessly toward the public.

47. As a result of the aforesaid, plaintiff sustained the injuries and damages previously described in this complaint.

48. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdiction of this Court from all defendants.

**AS AND FOR A FOURTH CAUSE OF ACTION –
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

49. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 48 as if fully set forth herein.

50. The actions of the defendants in arresting the plaintiff who they knew or should have known was not guilty of a crime, were outrageous and beyond any norms acceptable to society.

51. As a result of the aforesaid, plaintiff sustained injuries and damages previously described in this complaint.

52. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdiction of this Court from all defendants.

**AS AND FOR A FIFTH CAUSE OF ACTION –
FALSE ARREST AND FALSE IMPRISONMENT**

53. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 52 as if fully set forth herein.

54. At no time did plaintiff commit any act or offense for which an arrest may be lawfully made.

55. The false criminal charges, false arrest and wrongful imprisonment were without any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

56. As a result of the aforesaid, plaintiff sustained injuries and damages previously described in this complaint.

57. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdiction of this Court from all defendants.

**AS AND FOR A SIXTH CAUSE OF ACTION-
ASSAULT AND BATTERY**

58. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 57 as if fully set forth herein.

59. While the plaintiff was in the custody of the defendants, he was caused to be negligently, intentionally, wrongfully, willfully, maliciously, and with gross negligence, physically detained assaulted, beaten and battered by defendants and was caused to sustain severe and permanent injuries.

60. The aforementioned occurrence took place due to the negligence of the defendants their agents, servants, or employees, acting within the scope of their authority, within the scope of their employment and in furtherance of their agency.

61. The aforesaid occurrence and the results thereof were due to and caused by the negligence of the defendants and their agents, servants, or employees in negligently, carelessly, and recklessly causing, allowing and/or permitting the plaintiff to be willfully, maliciously and with gross negligence physically detained, assaulted and battered.

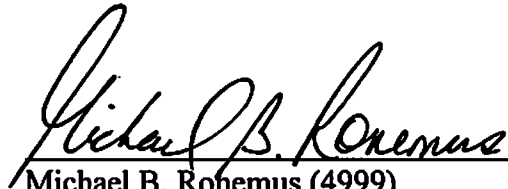
62. No negligence on the part of the plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

63. That by reason of the foregoing, the plaintiff KURT WALTERS was caused to sustain serious injuries and to suffer pain, shock, and mental anguish; these injuries and their effects will be permanent; as a result of said injuries the plaintiff has been caused to incur and will continue to incur expense relative to his injuries.

64. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdiction of this Court from all defendants.

WHEREFORE, plaintiff KURT WALTERS demands damages in an amount that exceeds the minimal jurisdictional amount of the lower courts from all defendants in each of the first through sixth causes of action along with punitive damages and attorney's fees, together with the costs and disbursements of this action.

Dated: New York, New York
May 17, 2012


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